

Contract for Consultant's Services

Lump-Sum

Project Name: Component 2 - Site Feasibility and Mapping to Support the Preparation of Serious Shea, a Shea Butter Processing Company, in Burkina Faso

Grant No. 4367

Contract No. 2

Between

Serious Shea SARL

and

Technoserve

Dated: 26th November 2018

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PREFACE

1. The standard Contract form consists of four parts: The Form of Contract to be signed by the Client and the Consultant, the General Conditions of Contract (GCC), including Attachment 1 (Bank's Policy – Corrupt and Fraudulent Practices); the Special Conditions of Contract (SCC); and the Appendices.
2. The General Conditions of Contract, including Attachment 1, shall not be modified. The Special Conditions of Contract that contain clauses specific to each Contract intend to supplement, but not over-write or otherwise contradict, the General Conditions.

FORM OF CONTRACT

LUMP-SUM

This CONTRACT (hereinafter called the “Contract”) is made the 26th day of the month of November 2018, between, on the one hand, *Serious Shea SARL* (hereinafter called the “Client”) and, on the other hand, *Technoserve* (hereinafter called the “Consultant”).

WHEREAS

- (a) the Client has requested the Consultant to provide certain consulting services as defined in this Contract (hereinafter called the “Services”);
- (b) the Consultant, having represented to the Client that it has the required professional skills, expertise and technical resources, has agreed to provide the Services on the terms and conditions set forth in this Contract;
- (c) the Client has received a grant from the African Development Bank: toward the cost of the Services and intends to apply a portion of the proceeds of this grant to eligible payments under this Contract, it being understood that (i) payments by the Bank will be made only at the request of the Client and upon approval by the Bank; (ii) such payments will be subject, in all respects, to the terms and conditions of the grant agreement account for the purpose of any payment to persons or entities, or for any import of goods, if such payment or import, to the knowledge of the Bank, is prohibited by the decision of the United Nations Security council taken under Chapter VII of the Charter of the United Nations/; and (iii) no party other than the Client shall derive any rights from the grant agreement or have any claim to the grant proceeds;

NOW THEREFORE the parties hereto hereby agree as follows:

1. The following documents attached hereto shall be deemed to form an integral part of this Contract:
 - (a) The General Conditions of Contract (including Attachment 1 “Bank Policy – Corrupt and Fraudulent Practices);
 - (b) The Special Conditions of Contract;
 - (c) Appendices:

Appendix A: Terms of Reference

Appendix B: Key Experts

Appendix C: Breakdown of Contract Price

Appendix D: Form of Advance Payments Guarantee

In the event of any inconsistency between the documents, the following order of precedence shall prevail: The Special Conditions of Contract; the General Conditions of Contract, including Attachment 1; Appendix A; Appendix B; Appendix C; Appendix D. Any reference to this Contract shall include, where the context permits, a reference to its Appendices.

2. The mutual rights and obligations of the Client and the Consultant shall be as set forth in the Contract, in particular:
 - (a) the Consultant shall carry out the Services in accordance with the provisions of the Contract; and
 - (b) the Client shall make payments to the Consultant in accordance with the provisions of the Contract.

IN WITNESS WHEREOF, the Parties hereto have caused this Contract to be signed in their respective names as of the day and year first above written.

For and on behalf of Serious Shea SARL,



Mr. Jon White, Director at Serious Shea

For and on behalf of Technoserve,



Mr. Jeff Chrisfield, Chief Financial Officer at TechnoServe

GENERAL CONDITIONS OF CONTRACT

A. GENERAL PROVISIONS

- 1. Definitions**
- 1.1. Unless the context otherwise requires, the following terms whenever used in this Contract have the following meanings:
- (a) “Applicable Guidelines” means *policy of bank details for the use of consultants which can be found at www.afdb.org*.
 - (b) “Applicable Law” means the laws and any other instruments having the force of law in the Client’s country, or in such other country as may be specified in the Special Conditions of Contract (SCC), as they may be issued and in force from time to time.
 - (c) “Bank” means the African Development Bank, the African Development Fund and the Nigeria Trust Fund as the context may require.
 - (d) “Borrower or Recipient or Beneficiary” means the Government, Government agency or other entity that signs the financing [or loan/credit/grant/project] agreement with the Bank.
 - (e) “Client” means *the implementing/ executing* agency that signs the Contract for the Services with the Selected Consultant.
 - (f) “Consultant” means a legally-established professional consulting firm or entity selected by the Client to provide the Services under the signed Contract.
 - (g) “Contract” means the legally binding written agreement signed between the Client and the Consultant and which includes all the attached documents listed in its paragraph 1 of the Form of Contract (the General Conditions (GCC), the Special Conditions (SCC), and the Appendices).
 - (h) “Day” means a working day unless indicated otherwise.
 - (i) “Effective Date” means the date on which this Contract comes into force and effect pursuant to Clause GCC 11.
 - (j) “Experts” means, collectively, Key Experts, Non-Key Experts, or any other personnel of the Consultant, Sub-consultant or JV member(s) assigned by the Consultant to perform the Services or any part thereof under the Contract.
 - (k) “Foreign Currency” means any currency other than the currency of the Client’s country.
 - (l) “GCC” means these General Conditions of Contract.
 - (m) “Government” means the government of the Client’s country.

- (n) “Joint Venture (JV)” means an association with or without a legal personality distinct from that of its members, of more than one entity where one member has the authority to conduct all businesses for and on behalf of any and all the members of the JV, and where the members of the JV are jointly and severally liable to the Client for the performance of the Contract.
- (o) “Key Expert(s)” means an individual professional whose skills, qualifications, knowledge and experience are critical to the performance of the Services under the Contract and whose Curricula Vitae (CV) was taken into account in the technical evaluation of the Consultant’s proposal.
- (p) “Local Currency” means the currency of the Client’s country.
- (q) “Non-Key Expert(s)” means an individual professional provided by the Consultant or its Sub-consultant to perform the Services or any part thereof under the Contract.
- (r) “Party” means the Client or the Consultant, as the case may be, and “Parties” means both of them.
- (s) “SCC” means the Special Conditions of Contract by which the GCC may be amended or supplemented but not over-written.
- (t) “Services” means the work to be performed by the Consultant pursuant to this Contract, as described in Appendix A hereto.
- (u) “Sub-consultants” means an entity to whom/which the Consultant subcontracts any part of the Services while remaining solely liable for the execution of the Contract.
- (v) “Third Party” means any person or entity other than the Government, the Client, the Consultant or a Sub-consultant.

**2. Relationship
between the
Parties**

- 2.1. Nothing contained herein shall be construed as establishing a relationship of master and servant or of principal and agent as between the Client and the Consultant. The Consultant, subject to this Contract, has complete charge of the Experts and Sub-consultants, if any, performing the Services and shall be fully responsible for the Services performed by them or on their behalf hereunder.

**3. Law Governing
Contract**

- 3.1. This Contract, its meaning and interpretation, and the relation between the Parties shall be governed by the Applicable Law.

4. Language

- 4.1. This Contract has been executed in the language specified in the SCC, which shall be the binding and controlling language for all matters relating to the meaning or interpretation of this Contract.

5. Headings

- 5.1. The headings shall not limit, alter or affect the meaning of this Contract.

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| 6. Communications | <p>6.1. Any communication required or permitted to be given or made pursuant to this Contract shall be in writing in the language specified in Clause GCC 4. Any such notice, request or consent shall be deemed to have been given or made when delivered in person to an authorized representative of the Party to whom the communication is addressed, or when sent to such Party at the address specified in the SCC.</p> <p>6.2. A Party may change its address for notice hereunder by giving the other Party any communication of such change to the address specified in the SCC.</p> |
| 7. Location | <p>7.1. The Services shall be performed at such locations as are specified in Appendix A hereto and, where the location of a particular task is not so specified, at such locations, whether in the Government's country or elsewhere, as the Client may approve.</p> |
| 8. Authority of Member in Charge | <p>8.1. In case the Consultant is a Joint Venture, the members hereby authorize the member specified in the SCC to act on their behalf in exercising all the Consultant's rights and obligations towards the Client under this Contract, including without limitation the receiving of instructions and payments from the Client.</p> |
| 9. Authorized Representatives | <p>9.1. Any action required or permitted to be taken, and any document required or permitted to be executed under this Contract by the Client or the Consultant may be taken or executed by the officials specified in the SCC.</p> |
| 10. Corrupt and Fraudulent Practices | <p>10.1. The Bank requires compliance with its policy in regard to corrupt and fraudulent/prohibited practices as set forth in Attachment 1 to the GCC.</p> |
| a. Commissions and Fees | <p>10.2. The Client requires the Consultant to disclose any commissions, gratuities or fees that may have been paid or are to be paid to agents or any other party with respect to the selection process or execution of the Contract. The information disclosed must include at least the name and address of the agent or other party, the amount and currency, and the purpose of the commission, gratuity or fee. Failure to disclose such commissions, gratuities or fees may result in termination of the Contract and/or sanctions by the Bank.</p> |

B. COMMENCEMENT, COMPLETION, MODIFICATION AND TERMINATION OF CONTRACT

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| 11. Effectiveness of | <p>11.1. This Contract shall come into force and effect on the date (the "Effective Date") of the Client's notice to the Consultant</p> |
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Contract		instructing the Consultant to begin carrying out the Services. This notice shall confirm that the effectiveness conditions, if any, listed in the SCC have been met.
12. Termination of Contract for Failure to Become Effective	12.1.	If this Contract has not become effective within such time period after the date of Contract signature as specified in the SCC, either Party may, by not less than twenty two (22) days written notice to the other Party, declare this Contract to be null and void, and in the event of such a declaration by either Party, neither Party shall have any claim against the other Party with respect hereto.
13. Commencement of Services	13.1.	The Consultant shall confirm availability of Key Experts and begin carrying out the Services not later than the number of days after the Effective Date specified in the SCC.
14. Expiration of Contract	14.1.	Unless terminated earlier pursuant to Clause GCC 19 hereof, this Contract shall expire at the end of such time period after the Effective Date as specified in the SCC.
15. Entire Agreement	15.1.	This Contract contains all covenants, stipulations and provisions agreed by the Parties. No agent or representative of either Party has authority to make, and the Parties shall not be bound by or be liable for, any statement, representation, promise or agreement not set forth herein.
16. Modifications or Variations	16.1.	Any modification or variation of the terms and conditions of this Contract, including any modification or variation of the scope of the Services, may only be made by written agreement between the Parties. However, each Party shall give due consideration to any proposals for modification or variation made by the other Party.
	16.2.	In cases of substantial modifications or variations, the prior written consent of the Bank is required.
17. Force Majeure		
a. Définition	17.1	For the purposes of this Contract, “Force Majeure” means an event which is beyond the reasonable control of a Party, is not foreseeable, is unavoidable, and makes a Party’s performance of its obligations hereunder impossible or so impractical as reasonably to be considered impossible under the circumstances, and subject to those requirements, includes, but is not limited to, war, riots, civil disorder, earthquake, fire, explosion, storm, flood or other adverse weather conditions, strikes, lockouts or other industrial action confiscation or any other action by Government agencies.
	17.2.	Force Majeure shall not include (i) any event which is caused by the negligence or intentional action of a Party or

such Party's Experts, Sub-consultants or agents or employees, nor (ii) any event which a diligent Party could reasonably have been expected to both take into account at the time of the conclusion of this Contract, and avoid or overcome in the carrying out of its obligations hereunder.

17.3. Force Majeure shall not include insufficiency of funds or failure to make any payment required hereunder.

b. No Breach of Contract

17.4 The failure of a Party to fulfill any of its obligations hereunder shall not be considered to be a breach of, or default under, this Contract insofar as such inability arises from an event of Force Majeure, provided that the Party affected by such an event has taken all reasonable precautions, due care and reasonable alternative measures, all with the objective of carrying out the terms and conditions of this Contract.

c. Measures to be Taken

17.5 A Party affected by an event of Force Majeure shall continue to perform its obligations under the Contract as far as is reasonably practical, and shall take all reasonable measures to minimize the consequences of any event of Force Majeure.

17.6 A Party affected by an event of Force Majeure shall notify the other Party of such event as soon as possible, and in any case not later than fourteen (14) calendar days following the occurrence of such event, providing evidence of the nature and cause of such event, and shall similarly give written notice of the restoration of normal conditions as soon as possible.

17.7 Any period within which a Party shall, pursuant to this Contract, complete any action or task, shall be extended for a period equal to the time during which such Party was unable to perform such action as a result of Force Majeure.

17.8 During the period of their inability to perform the Services as a result of an event of Force Majeure, the Consultant, upon instructions by the Client, shall either:

- (a) demobilize, in which case the Consultant shall be reimbursed for additional costs they reasonably and necessarily incurred, and, if required by the Client, in reactivating the Services; or
- (b) continue with the Services to the extent reasonably possible, in which case the Consultant shall continue to be paid under the terms of this Contract and be reimbursed for additional costs reasonably and necessarily incurred.
- (c) In the case of disagreement between the Parties as to the existence or extent of Force Majeure, the matter shall be settled according to Clauses GCC 44 & 45.

18. Suspension

18.1. The Client may, by written notice of suspension to the Consultant, suspend all payments to the Consultant hereunder if the Consultant fails to perform any of its obligations under this Contract, including the carrying out of the Services, provided that such notice of suspension (i) shall specify the nature of the failure, and (ii) shall request the Consultant to remedy such failure within a period not exceeding thirty (30) calendar days after receipt by the Consultant of such notice of suspension.

19. Termination

19.1. This Contract may be terminated by either Party as per provisions set up below:

a. By the Client

19.1.1. The Client may terminate this Contract in case of the occurrence of any of the events specified in paragraphs (a) through (f) of this Clause. In such an occurrence the Client shall give at least thirty (30) calendar days' written notice of termination to the Consultant in case of the events referred to in (a) through (d); at least sixty (60) calendar days' written notice in case of the event referred to in (e); and at least five (5) calendar days' written notice in case of the event referred to in (f):

- (a) If the Consultant fails to remedy a failure in the performance of its obligations hereunder, as specified in a notice of suspension pursuant to Clause GCC 18;
- (b) If the Consultant becomes (or, if the Consultant consists of more than one entity, if any of its members becomes) insolvent or bankrupt or enter into any agreements with their creditors for relief of debt or take advantage of any law for the benefit of debtors or go into liquidation or receivership whether compulsory or voluntary;
- (c) If the Consultant fails to comply with any final decision reached as a result of arbitration proceedings pursuant to Clause GCC 45.1;
- (d) If, as the result of Force Majeure, the Consultant is unable to perform a material portion of the Services for a period of not less than sixty (60) calendar days;
- (e) If the Client, in its sole discretion and for any reason whatsoever, decides to terminate this Contract;
- (f) If the Consultant fails to confirm availability of Key Experts as required in Clause GCC 13.

19.1.2. Furthermore, if the Client determines that the Consultant has engaged in corrupt, fraudulent, collusive, coercive *[or obstructive]* practices, in competing for or in executing the Contract, then the Client may, after giving fourteen (14)

calendar days written notice to the Consultant, terminate the Consultant's employment under the Contract.

- b. By the Consultant**

19.1.3. The Consultant may terminate this Contract, by not less than thirty (30) calendar days' written notice to the Client, in case of the occurrence of any of the events specified in paragraphs (a) through (d) of this Clause.

 - (a) If the Client fails to pay any money due to the Consultant pursuant to this Contract and not subject to dispute pursuant to Clause GCC 45.1 within forty-five (45) calendar days after receiving written notice from the Consultant that such payment is overdue.
 - (b) If, as the result of Force Majeure, the Consultant is unable to perform a material portion of the Services for a period of not less than sixty (60) calendar days.
 - (c) If the Client fails to comply with any final decision reached as a result of arbitration pursuant to Clause GCC 45.1.
 - (d) If the Client is in material breach of its obligations pursuant to this Contract and has not remedied the same within forty-five (45) days (or such longer period as the Consultant may have subsequently approved in writing) following the receipt by the Client of the Consultant's notice specifying such breach.
- c. Cessation of Rights and Obligations**

19.1.4. Upon termination of this Contract pursuant to Clauses GCC 12 or GCC 19 hereof, or upon expiration of this Contract pursuant to Clause GCC 14, all rights and obligations of the Parties hereunder shall cease, except (i) such rights and obligations as may have accrued on the date of termination or expiration, (ii) the obligation of confidentiality set forth in Clause GCC 22, (iii) the Consultant's obligation to permit inspection, copying and auditing of their accounts and records set forth in Clause GCC 25, and (iv) any right which a Party may have under the Applicable Law.
- d. Cessation of Services**

19.1.5. Upon termination of this Contract by notice of either Party to the other pursuant to Clauses GCC 19a or GCC 19b, the Consultant shall, immediately upon dispatch or receipt of such notice, take all necessary steps to bring the Services to a close in a prompt and orderly manner and shall make every reasonable effort to keep expenditures for this purpose to a minimum. With respect to documents prepared by the Consultant and equipment and materials furnished by the Client, the Consultant shall proceed as provided, respectively, by Clauses GCC 27 or GCC 28.
- e. Payment upon Termination**

19.1.6. Upon termination of this Contract, the Client shall make the following payments to the Consultant:

 - (a) payment for Services satisfactorily performed prior to the

effective date of termination; and

- (b) in the case of termination pursuant to paragraphs (d) and (e) of Clause GCC 19.1.1, reimbursement of any reasonable cost incidental to the prompt and orderly termination of this Contract, including the cost of the return travel of the Experts.

C. OBLIGATIONS OF THE CONSULTANT

20. General

a. Standard of Performance

20.1 The Consultant shall perform the Services and carry out the Services with all due diligence, efficiency and economy, in accordance with generally accepted professional standards and practices, and shall observe sound management practices, and employ appropriate technology and safe and effective equipment, machinery, materials and methods. The Consultant shall always act, in respect of any matter relating to this Contract or to the Services, as a faithful adviser to the Client, and shall at all times support and safeguard the Client's legitimate interests in any dealings with the third parties.

20.2. The Consultant shall employ and provide such qualified and experienced Experts and Sub-consultants as are required to carry out the Services.

20.3. The Consultant may subcontract part of the Services to an extent and with such Key Experts and Sub-consultants as may be approved in advance by the Client. Notwithstanding such approval, the Consultant shall retain full responsibility for the Services.

b. Law Applicable to Services

20.4. The Consultant shall perform the Services in accordance with the Contract and the Applicable Law and shall take all practicable steps to ensure that any of its Experts and Sub-consultants, comply with the Applicable Law.

20.5. Throughout the execution of the Contract, the Consultant shall comply with the import of goods and services prohibitions in the Client's country when

- (a) as a matter of law or official regulations, the Borrower's/Beneficiary's country prohibits commercial relations with that country; or
- (b) by an act of compliance with a decision of the United Nations Security Council taken under Chapter VII of the Charter of the United Nations, the Borrower's Country prohibits any import of goods from that country or any payments to any country, person, or entity in that country.

- 20.6. The Client shall notify the Consultant in writing of relevant local customs, and the Consultant shall, after such notification, respect such customs.
- 21. Conflict of Interests**
- 21.1. The Consultant shall hold the Client's interests paramount, without any consideration for future work, and strictly avoid conflict with other assignments or their own corporate interests.
- a. Consultant Not to Benefit from Commissions, Discounts, etc.**
- 21.1.1 The payment of the Consultant pursuant to GCC F (Clauses GCC 38 through 42) shall constitute the Consultant's only payment in connection with this Contract and, subject to Clause GCC 21.1.3, the Consultant shall not accept for its own benefit any trade commission, discount or similar payment in connection with activities pursuant to this Contract or in the discharge of its obligations hereunder, and the Consultant shall use its best efforts to ensure that any Sub-consultants, as well as the Experts and agents of either of them, similarly shall not receive any such additional payment.
- 21.1.2 Furthermore, if the Consultant, as part of the Services, has the responsibility of advising the Client on the procurement of goods, works or services, the Consultant shall comply with the Bank's Applicable Guidelines, and shall at all times exercise such responsibility in the best interest of the Client. Any discounts or commissions obtained by the Consultant in the exercise of such procurement responsibility shall be for the account of the Client.
- b. Consultant and Affiliates Not to Engage in Certain Activities**
- 21.1.3 The Consultant agrees that, during the term of this Contract and after its termination, the Consultant and any entity affiliated with the Consultant, as well as any Sub-consultants and any entity affiliated with such Sub-consultants, shall be disqualified from providing goods, works or non-consulting services resulting from or directly related to the Consultant's Services for the preparation or implementation of the project, unless otherwise indicated in the SCC.
- c. Prohibition of Conflicting Activities**
- 21.1.4 The Consultant shall not engage, and shall cause its Experts as well as its Sub-consultants not to engage, either directly or indirectly, in any business or professional activities that would conflict with the activities assigned to them under this Contract.
- d. Strict Duty to Disclose Conflicting Activities**
- 21.1.5 The Consultant has an obligation and shall ensure that its Experts and Sub-consultants shall have an obligation to disclose any situation of actual or potential conflict that impacts their capacity to serve the best interest of their Client, or that may reasonably be perceived as having this effect. Failure to disclose said situations may lead to the disqualification of the Consultant or the termination of its

Contract.

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| 22. Confidentiality | 22.1 Except with the prior written consent of the Client, the Consultant and the Experts shall not at any time communicate to any person or entity any confidential information acquired in the course of the Services, nor shall the Consultant and the Experts make public the recommendations formulated in the course of, or as a result of, the Services. |
| 23. Liability of the Consultant | 23.1 Subject to additional provisions, if any, set forth in the SCC, the Consultant's liability under this Contract shall be as determined under the Applicable Law. |
| 24. Insurance to be Taken out by the Consultant | 24.1 The Consultant (i) shall take out and maintain, and shall cause any Sub-consultants to take out and maintain, at its (or the Sub-consultants', as the case may be) own cost but on terms and conditions approved by the Client, insurance against the risks, and for the coverage specified in the SCC, and (ii) at the Client's request, shall provide evidence to the Client showing that such insurance has been taken out and maintained and that the current premiums therefore have been paid. The Consultant shall ensure that such insurance is in place prior to commencing the Services as stated in Clause GCC 13. |
| 25. Accounting, Inspection and Auditing | <p>25.1 The Consultant shall keep, and shall make all reasonable efforts to cause its Sub-consultants to keep, accurate and systematic accounts and records in respect of the Services and in such form and detail as will clearly identify relevant time changes and costs.</p> <p>25.2 The Consultant shall permit and shall cause its Sub-consultants to permit, the Bank and/or persons appointed by the Bank to inspect the Site and/or all accounts and records relating to the performance of the Contract and the submission of the Proposal to provide the Services, and to have such accounts and records audited by auditors appointed by the Bank if requested by the Bank. The Consultant's attention is drawn to Clause GCC 10 which provides, inter alia, that acts intended to materially impede the exercise of the Bank's inspection and audit rights provided for under this Clause GCC25.2 constitute a prohibited practice subject to contract termination (as well as to a determination of ineligibility under the Bank's prevailing sanctions procedures.)</p> |
| 26. Reporting Obligations | 26.1 The Consultant shall submit to the Client the reports and documents specified in Appendix A, in the form, in the numbers and within the time periods set forth in the said Appendix. |
| 27. Proprietary Rights of the Client in | 27.1 Unless otherwise indicated in the SCC, all reports and relevant data and information such as maps, diagrams, plans, databases, |

**Reports and
Records**

other documents and software, supporting records or material compiled or prepared by the Consultant for the Client in the course of the Services shall be confidential and become and remain the absolute property of the Client. The Consultant shall, not later than upon termination or expiration of this Contract, deliver all such documents to the Client, together with a detailed inventory thereof. The Consultant may retain a copy of such documents, data and/or software but shall not use the same for purposes unrelated to this Contract without prior written approval of the Client.

- 27.2 If license agreements are necessary or appropriate between the Consultant and third parties for purposes of development of the plans, drawings, specifications, designs, databases, other documents and software, the Consultant shall obtain the Client's prior written approval to such agreements, and the Client shall be entitled at its discretion to require recovering the expenses related to the development of the program(s) concerned. Other restrictions about the future use of these documents and software, if any, shall be specified in the SCC.

**28. Equipment,
Vehicles and
Materials**

- 28.1 Equipment, vehicles and materials made available to the Consultant by the Client, or purchased by the Consultant wholly or partly with funds provided by the Client, shall be the property of the Client and shall be marked accordingly. Upon termination or expiration of this Contract, the Consultant shall make available to the Client an inventory of such equipment, vehicles and materials and shall dispose of such equipment, vehicles and materials in accordance with the Client's instructions. While in possession of such equipment, vehicles and materials, the Consultant, unless otherwise instructed by the Client in writing, shall insure them at the expense of the Client in an amount equal to their full replacement value.
- 28.2 Any equipment or materials brought by the Consultant or its Experts into the Client's country for the use either for the project or personal use shall remain the property of the Consultant or the Experts concerned, as applicable.

D. CONSULTANT'S EXPERTS AND SUB-CONSULTANTS**29. Description of Key
Experts**

- 29.1 The title, agreed job description, minimum qualification and estimated period of engagement to carry out the Services of each of the Consultant's Key Experts are described in Appendix B.

**30. Replacement of Key
Experts**

- 30.1 Except as the Client may otherwise agree in writing, no changes shall be made in the Key Experts.
- 30.2 Notwithstanding the above, the substitution of Key Experts during Contract execution may be considered only based on

the Consultant's written request and due to circumstances outside the reasonable control of the Consultant, including but not limited to death or medical incapacity. In such case, the Consultant shall forthwith provide as a replacement, a person of equivalent or better qualifications and experience, and at the same rate of remuneration.

31. Removal of Experts or Sub-consultants

- 31.1 If the Client finds that any of the Experts or Sub-consultant has committed serious misconduct or has been charged with having committed a criminal action, or shall the Client determine that Consultant's Expert of Sub-consultant have engaged in corrupt, fraudulent, collusive, coercive *[or obstructive]* practice while performing the Services, the Consultant shall, at the Client's written request, provide a replacement.
- 31.2 In the event that any of Key Experts, Non-Key Experts or Sub-consultants is found by the Client to be incompetent or incapable in discharging assigned duties, the Client, specifying the grounds therefore, may request the Consultant to provide a replacement.
- 31.3 Any replacement of the removed Experts or Sub-consultants shall possess better qualifications and experience and shall be acceptable to the Client.
- 31.4 The Consultant shall bear all costs arising out of or incidental to any removal and/or replacement of such Experts.

E. OBLIGATIONS OF THE CLIENT

32. Assistance and Exemptions

- 32.1 Unless otherwise specified in the SCC, the Client shall use its best efforts to:
- (a) Assist the Consultant with obtaining work permits and such other documents as shall be necessary to enable the Consultant to perform the Services.
 - (b) Assist the Consultant with promptly obtaining, for the Experts and, if appropriate, their eligible dependents, all necessary entry and exit visas, residence permits, exchange permits and any other documents required for their stay in the Client's country while carrying out the Services under the Contract.
 - (c) Facilitate prompt clearance through customs of any property required for the Services and of the personal effects of the Experts and their eligible dependents.
 - (d) Issue to officials, agents and representatives of the Government all such instructions and information as may be

necessary or appropriate for the prompt and effective implementation of the Services.

- (e) Assist the Consultant and the Experts and any Sub-consultants employed by the Consultant for the Services with obtaining exemption from any requirement to register or obtain any permit to practice their profession or to establish themselves either individually or as a corporate entity in the Client's country according to the applicable law in the Client's country.
- (f) Assist the Consultant, any Sub-consultants and the Experts of either of them with obtaining the privilege, pursuant to the applicable law in the Client's country, of bringing into the Client's country reasonable amounts of foreign currency for the purposes of the Services or for the personal use of the Experts and of withdrawing any such amounts as may be earned therein by the Experts in the execution of the Services.
- (g) Provide to the Consultant any such other assistance as may be specified in the SCC.

- | | | |
|---|------|---|
| 33. Access to Project Site | 33.1 | The Client warrants that the Consultant shall have, free of charge, unimpeded access to the project site in respect of which access is required for the performance of the Services. The Client will be responsible for any damage to the project site or any property thereon resulting from such access and will indemnify the Consultant and each of the experts in respect of liability for any such damage, unless such damage is caused by the willful default or negligence of the Consultant or any Sub-consultants or the Experts of either of them. |
| 34. Change in the Applicable Law Related to Taxes and Duties | 34.1 | If, after the date of this Contract, there is any change in the applicable law in the Client's country with respect to taxes and duties which increases or decreases the cost incurred by the Consultant in performing the Services, then the remuneration and reimbursable expenses otherwise payable to the Consultant under this Contract shall be increased or decreased accordingly by agreement between the Parties hereto, and corresponding adjustments shall be made to the Contract price amount specified in Clause GCC 38.1 |
| 35. Services, Facilities and Property of the Client | 35.1 | The Client shall make available to the Consultant and the Experts, for the purposes of the Services and free of any charge, the services, facilities and property described in the Terms of Reference (Appendix A) at the times and in the manner specified in said Appendix A. |
| 36. Counterpart | 36.1 | The Client shall make available to the Consultant free of charge such professional and support counterpart |

Personnel

personnel, to be nominated by the Client with the Consultant's advice, if specified in Appendix A.

- 36.2 Professional and support counterpart personnel, excluding Client's liaison personnel, shall work under the exclusive direction of the Consultant. If any member of the counterpart personnel fails to perform adequately any work assigned to such member by the Consultant that is consistent with the position occupied by such member, the Consultant may request the replacement of such member, and the Client shall not unreasonably refuse to act upon such request.

37. Payment Obligation

- 37.1 In consideration of the Services performed by the Consultant under this Contract, the Client shall make such payments to the Consultant for the deliverables specified in Appendix A and in such manner as is provided by GCC F below.

F. PAYMENTS TO THE CONSULTANT**38. Contract Price**

- 38.1 The Contract price is fixed and is set forth in the SCC. The Contract price breakdown is provided in Appendix C.
- 38.2 Any change to the Contract price specified in Clause 38.1 can be made only if the Parties have agreed to the revised scope of Services pursuant to Clause GCC 16 and have amended in writing the Terms of Reference in Appendix A.

39. Taxes and Duties

- 39.1 The Consultant, Sub-consultants and Experts are responsible for meeting any and all tax liabilities arising out of the Contract unless it is stated otherwise in the SCC.
- 39.2 As an exception to the above and as stated in the SCC, all local identifiable indirect taxes (itemized and finalized at Contract negotiations) are reimbursed to the Consultant or are paid by the Client on behalf of the Consultant.

40. Currency of Payment

- 40.1 Any payment under this Contract shall be made in the currency(ies) of the Contract.

41. Mode of Billing and Payment

- 41.1 The total payments under this Contract shall not exceed the Contract price set forth in Clause GCC 38.1.
- 41.2 The payments under this Contract shall be made in lump-sum installments against deliverables specified in Appendix A. The payments will be made according to the payment schedule stated in the SCC.
- 41.2.1 Advance payment: Unless otherwise indicated in the SCC, an advance payment shall be made against an advance payment bank guarantee acceptable to the Client in an

amount (or amounts) and in a currency (or currencies) specified in the SCC. Such guarantee (i) is to remain effective until the advance payment has been fully set off, and (ii) is to be in the form set forth in Appendix D, or in such other form as the Client shall have approved in writing. The advance payments will be set off by the Client in equal portions against the lump-sum installments specified in the SCC until said advance payments have been fully set off.

41.2.2 *The Lump-Sum Installment Payments.* The Client shall pay the Consultant within sixty (60) days after the receipt by the Client of the deliverable(s) and the cover invoice for the related lump-sum installment payment. The payment can be withheld if the Client does not approve the submitted deliverable(s) as satisfactory in which case the Client shall provide comments to the Consultant within the same sixty (60) days period. The Consultant shall thereupon promptly make any necessary corrections, and thereafter the foregoing process shall be repeated.

41.2.3 *The Final Payment.* The final payment under this Clause shall be made only after the final report has been submitted by the Consultant and approved as satisfactory by the Client. The Services shall then be deemed completed and finally accepted by the Client. The last lump-sum installment shall be deemed approved for payment by the Client within ninety (90) calendar days after receipt of the final report by the Client unless the Client, within such ninety (90) calendar day period, gives written notice to the Consultant specifying in detail deficiencies in the Services, the final report. The Consultant shall thereupon promptly make any necessary corrections, and thereafter the foregoing process shall be repeated. 41.2.4 All payments under this Contract shall be made to the accounts of the Consultant specified in the SCC.

41.2.4 With the exception of the final payment under 41.2.3 above, payments do not constitute acceptance of the whole Services nor relieve the Consultant of any obligations hereunder.

42. Interest on Delayed Payments

42.1 If the Client had delayed payments beyond fifteen (15) days after the due date stated in Clause GCC 41.2.2 , interest shall be paid to the Consultant on any amount due by, not paid on, such due date for each day of delay at the annual rate stated in the SCC.

G. FAIRNESS AND GOOD FAITH

43. Good Faith

- 43.1 The Parties undertake to act in good faith with respect to each other's rights under this Contract and to adopt all reasonable measures to ensure the realization of the objectives of this Contract.

H. SETTLEMENT OF DISPUTES

44. Amicable Settlement

- 44.1 The Parties shall seek to resolve any dispute amicably by mutual consultation.
- 44.2 If either Party objects to any action or inaction of the other Party, the objecting Party may file a written Notice of Dispute to the other Party providing in detail the basis of the dispute. The Party receiving the Notice of Dispute will consider it and respond in writing within fourteen (14) days after receipt. If that Party fails to respond within fourteen (14) days, or the dispute cannot be amicably settled within fourteen (14) days following the response of that Party, Clause GCC 45.1 shall apply.

45. Dispute Resolution

- 45.1 Any dispute between the Parties arising under or related to this Contract that cannot be settled amicably may be referred to by either Party to the adjudication/arbitration in accordance with the provisions specified in the SCC.

II. General Conditions

ATTACHMENT 1: Bank Policy – Corrupt and Fraudulent Practices

It is the Bank's policy to require that Borrowers (including beneficiaries of Bank Financing), consultants and their agents (whether declared or not), sub-contractors, sub-consultants, service providers or suppliers and any personnel thereof, observe the highest standard of ethics during the selection and execution of Bank-financed contracts¹. In pursuance of this policy, the Bank:

(a) defines, for the purposes of this provision, the terms set forth below as follows:

- (i) "corrupt practice" is the offering, giving, receiving or soliciting, directly or indirectly, of anything of value to influence improperly the actions of another party²;
- (ii) "fraudulent practice" is any act or omission, including misrepresentation, that knowingly or recklessly misleads, or attempts to mislead, a party³ to obtain financial or other benefit or to avoid an obligation;
- (iii) "collusive practice" is an arrangement between two or more parties⁴ designed to achieve an improper purpose, including to influence improperly the actions of another party;
- (iv) "coercive practice" is impairing or harming, or threatening to impair or harm, directly or indirectly, any party or the property of the party to influence improperly the actions of a party⁵;
- (v) "obstructive practice" is
 - (aa) deliberately destroying, falsifying, altering, or concealing of evidence material to the investigation or making false statements to investigators in order to materially impede a Bank investigation into allegations of a corrupt, fraudulent, coercive, or collusive practice; and/or threatening, harassing or intimidating any party to prevent it from disclosing its knowledge of matters relevant to the investigation or from pursuing the investigation, or

¹ In this context, any action taken by a consultant or any of its personnel, or its agents, or its sub-consultants, sub-contractors, service providers, suppliers, and/or their employees, to influence the selection process or contract execution for undue advantage, is improper.

² For the purpose of this sub-paragraph, "another party" refers to a public official acting in relation to the selection process or contract execution. In this context, "public official" includes Bank staff and employees of other organizations taking or reviewing selection decisions

³ For the purpose of this sub-paragraph, "party" refers to a public official; the terms "benefit" and "obligation" relate to the selection process or contract execution, and the "act or omission" is intended to influence the selection process or contract execution.

⁴ For the purpose of this sub-paragraph, "parties" refers to participants in the procurement or selection process (including public officials) attempting either themselves, or through another person or entity not participating in the procurement or selection process, to simulate competition or to establish contract prices at artificial, non-competitive levels, or are privy to each other's bid prices or other conditions.

⁵ For the purpose of this sub-paragraph, "party" refers to a participant in the selection process or contract execution.

- (bb) acts intended to materially impede the exercise of the Bank's inspection and audit rights provided for under paragraph 1.22(e) below.
- (b) will reject a proposal for award if it determines that the consultant recommended for award, or any of its personnel, or its agents, or its sub-consultants, sub-contractors, service providers, suppliers and/or their employees, has, directly or indirectly, engaged in corrupt, fraudulent, collusive, coercive, or obstructive practices in competing for the contract in question;
- (c) will declare misprocurement and cancel the portion of the Financing allocated to a contract if it determines at any time that representatives of the Borrower or of a recipient of any part of the proceeds of the Financing were engaged in corrupt, fraudulent, collusive, coercive, or obstructive practices during the selection process or the implementation of the contract in question, without the Borrower having taken timely and appropriate action satisfactory to the Bank to address such practices when they occur, including by failing to inform the Bank in a timely manner at the time they knew of the practices;
- (d) will sanction a firm or an individual, at any time, in accordance with prevailing Bank's sanctions procedures⁶, including by publicly declaring such firm or individual ineligible either indefinitely or for a stated period of time, (i) to be awarded a Bank-financed contract; and (ii) to be a nominated⁷ as sub-consultant, supplier, or service provider of an otherwise eligible firm being awarded a Bank-financed contract; and
- (e) will require that a clause be inserted in the RFP and in contracts financed by the Bank, requiring consultants and their agents, personnel, sub-consultants, sub-contractors, service providers, or suppliers, to permit the Bank to inspect all accounts, records and other documents relating to the submission of proposals and contract performance and to have them audited by auditors appointed by the Bank.

⁶ A firm or an individual may be declared ineligible to be awarded a Bank-financed contract (i) upon completion of the Bank's sanctions proceedings as per its sanctions procedures, including, inter alia, cross-debarment as agreed with other International Financial Institutions, including Multilateral Development Banks, or otherwise decided by the Bank, and through the application of the Proposal for the Implementation of a Sanctions Process within the African Development Bank; and (ii) as a result of temporary suspension or early temporary suspension in connection with an on-going sanctions proceeding.

⁷ A nominated sub-consultant, supplier, or service provider is one which has been either: (i) included by the consultant in its proposal because it brings specific and critical experience and know-how that are accounted for in the technical evaluation of the consultant's proposal for the particular services, or (ii) appointed by the Borrower.

III. Special Conditions of Contract

Number of GC Clause	Amendments of, and Supplements to, Clauses in the General Conditions of Contract
1.1(b) and 3.1	The Contract shall be construed in accordance with the law of the United Kingdom
4.1	The language is: <i>English</i>.
6.1 and 6.2	The addresses are: Client: Serious Shea SARL Attention: Mr. Jon White Facsimile: _____ E-mail: jon.white@impactagri.com Consultant: Technoserve Attention: Andrew Lala Facsimile: _____ E-mail: alala@tns.org
8.1	The Lead Member on behalf of the JV is <i>N/A</i>
9.1	The Authorized Representatives are: For the Client: Mr. Jon White, Serious Shea For the Consultant: Mr. Jeff Chrisfield, TechnoServe
11.1	The effectiveness conditions are the following: "<i>N/A</i>"
12.1	Termination of Contract for Failure to Become Effective: The time period shall be 20 days
13.1	Commencement of Services: The number of days shall be within 7 days Confirmation of Key Experts' availability to start the Assignment shall be submitted to the Client in writing as a written statement signed by each

	Key Expert.
14.1	Expiration of Contract: The time period shall be 12 <i>months</i>
21 b.	The Client reserves the right to determine on a case-by-case basis whether the Consultant should be disqualified from providing goods, works or non-consulting services due to a conflict of a nature described in Clause GCC 21.1.3 Yes
23.1	The following limitation of the Consultant's Liability towards the Client can be subject to the Contract's negotiations: “Limitation of the Consultant's Liability towards the Client: (a) Except in the case of gross negligence or willful misconduct on the part of the Consultant or on the part of any person or a firm acting on behalf of the Consultant in carrying out the Services, the Consultant, with respect to damage caused by the Consultant to the Client's property, shall not be liable to the Client: (i) for any indirect or consequential loss or damage; and (ii) for any direct loss or damage that exceeds 1 times the total value of the Contract; (b) This limitation of liability shall not (i) affect the Consultant's liability, if any, for damage to Third Parties caused by the Consultant or any person or firm acting on behalf of the Consultant in carrying out the Services; (ii) be construed as providing the Consultant with any limitation or exclusion from liability which is prohibited by the laws of Great Britain
24.1	The insurance coverage against the risks shall be as follows: (a) Professional liability insurance, with a minimum coverage of not less than US\$ 120,000

27.2	The Consultant shall not use <i>any material (both input and output)</i> for purposes unrelated to this Contract without the prior written approval of the Client. Similarly, any material owned by the Consultant prior to the start of this agreement remains with the Consultant.
38.1	The Contract price is: US\$ 130,000 inclusive of local indirect taxes. Any indirect local taxes chargeable in respect of this Contract for the Services provided by the Consultant shall “reimbursed” by the Client “to” the Consultant.
39.1 and 39.2	The Client warrants that <i>“the Client shall reimburse the Consultant, the Sub-consultants and the Experts”</i> any indirect taxes, duties, fees, levies and other impositions imposed, under the applicable law in the Client’s country, on the Consultant, the Sub-consultants and the Experts in respect of: (a) any payments whatsoever made to the Consultant, Sub-consultants and the Experts (other than nationals or permanent residents of the Client’s country), in connection with the carrying out of the Services; (b) any equipment, materials and supplies brought into the Client’s country by the Consultant or Sub-consultants for the purpose of carrying out the Services and which, after having been brought into such territories, will be subsequently withdrawn by them; (c) any equipment imported for the purpose of carrying out the Services and paid for out of funds provided by the Client and which is treated as property of the Client; (d) any property brought into the Client’s country by the Consultant, any Sub-consultants or the Experts (other than nationals or permanent residents of the Client’s country), or the eligible dependents of such experts for their personal use and which will subsequently be withdrawn by them upon their respective departure from the Client’s country, provided that: i) the Consultant, Sub-consultants and experts shall follow the usual customs procedures of the Client’s country in importing property into the Client’s country; and ii) if the Consultant, Sub-consultants or Experts do not withdraw but dispose of any property in the Client’s country upon which customs duties and taxes have been exempted, the Consultant, Sub-consultants or Experts, as the case may be, (a) shall bear such customs duties and

	taxes in conformity with the regulations of the Client's country, or (b) shall reimburse them to the Client if they were paid by the Client at the time the property in question was brought into the Client's country.
41.2	The payment schedule: • 1st payment: Execution of contract and delivery of project plan: US\$13,000 (10% of the total contract) • 2nd payment: Execution of kick-off meeting and delivery of initial profiling report and GIS mapping: US\$26,000 (20% of the total contract) • 3rd payment: Delivery of social assessment findings: US\$39,000 (30% of the total contract) • 4th payment: Delivery of operational plan to manage logistics: US\$39,000 (30% of the total contract) • Final payment on delivery of the decision-support system: US\$13,000 (10% of the total contract)
41.2.4	The accounts are: Account Name: TechnoServe Inc Account Number: 003851801277 Bank Name: Bank of America Bank Address: 48 Wall Street, Norwalk CT 06850 ABA: BOFAUS3N
42.1	The interest rate is: N/A
45.1	Note: In contracts with foreign consultants, the Bank requires that the international commercial arbitration in a neutral venue is used. Disputes shall be settled by arbitration in accordance with the following provisions: 1. <u>Selection of Arbitrators.</u> Each dispute submitted by a Party to arbitration shall be heard by a sole arbitrator or an arbitration panel composed of three (3) arbitrators, in accordance with the following provisions: (a) Where the Parties agree that the dispute concerns a technical matter, they may agree to appoint a sole arbitrator or, failing agreement on the identity of such sole arbitrator within thirty (30) days after receipt by the other Party of the proposal of a name for such an appointment by the Party who initiated the proceedings, either Party may apply to <i>the Federation Internationale des Ingenieurs-Conseil (FIDIC) of Lausanne, Switzerland</i> for a list of not fewer than five (5) nominees and, on receipt of such list, the Parties shall alternately strike names therefrom, and the last remaining nominee on the list shall be

	the sole arbitrator for the matter in dispute. If the last remaining nominee has not been determined in this manner within sixty (60) days of the date of the list, <i>the Federation Internationale des Ingenieurs-Conseil (FIDIC) of Lausanne, Switzerland</i> shall appoint, upon the request of either Party and from such list or otherwise, a sole arbitrator for the matter in dispute. (b) Where the Parties do not agree that the dispute concerns a technical matter, the Client and the Consultant shall each appoint one (1) arbitrator, and these two arbitrators shall jointly appoint a third arbitrator, who shall chair the arbitration panel. If the arbitrators named by the Parties do not succeed in appointing a third arbitrator within thirty (30) days after the latter of the two (2) arbitrators named by the Parties has been appointed, the third arbitrator shall, at the request of either Party, be appointed by <i>the Secretary General of the Permanent Court of Arbitration, The Hague</i> (c) If, in a dispute subject to paragraph (b) above, one Party fails to appoint its arbitrator within thirty (30) days after the other Party has appointed its arbitrator, the Party which has named an arbitrator may apply to the <i>the Secretary General of the Permanent Court of Arbitration, The Hague</i> to appoint a sole arbitrator for the matter in dispute, and the arbitrator appointed pursuant to such application shall be the sole arbitrator for that dispute.
	2. <u>Rules of Procedure.</u> Except as otherwise stated herein, arbitration proceedings shall be conducted in accordance with the rules of procedure for arbitration of the United Nations Commission on International Trade Law (UNCITRAL) as in force on the date of this Contract. 3. <u>Substitute Arbitrators.</u> If for any reason an arbitrator is unable to perform his/her function, a substitute shall be appointed in the same manner as the original arbitrator. 4. <u>Nationality and Qualifications of Arbitrators.</u> The sole arbitrator or the third arbitrator appointed pursuant to paragraphs 1(a) through 1(c) above shall be an internationally recognized legal or technical expert with extensive experience in relation to the matter in dispute and shall not be a national of the Consultant's home country or of the Government's country. For the purposes of this Clause, "home country" means any of: (a) the country of incorporation of the Consultant or of any of their members or Parties; or (b) the country in which the Consultant's or any of their members'

	or Parties' principal place of business is located; or (c) the country of nationality of a majority of the Consultant's or of any members' or Parties' shareholders; or (d) the country of nationality of the Sub-consultants concerned, where the dispute involves a subcontract.
	5. <u>Miscellaneous</u>. In any arbitration proceeding hereunder: (a) proceedings shall, unless otherwise agreed by the Parties, be held in <i>the Secretary General of the Permanent Court of Arbitration, The Hague</i> (b) the <i>English</i> language shall be the official language for all purposes; and (c) the decision of the sole arbitrator or of a majority of the arbitrators (or of the third arbitrator if there is no such majority) shall be final and binding and shall be enforceable in any court of competent jurisdiction, and the Parties hereby waive any objections to or claims of immunity in respect of such enforcement.

APPENDICES

APPENDIX A – TERMS OF REFERENCE

1.1. Background

Shea processing is a major industry in Burkina Faso, and conducted almost exclusively by women's groups; however, it still involves outdated methods: potentially degrading habitats including shea trees, emitting significant greenhouse gas emissions, causing a number of health and hygiene risks, and not realising its potential to support social and -economic development.

A consortium including an international project developer, a renowned local shea processing training company, and an engineering firm have established **Serious Shea**, which seeks to improve the shea butter-making process in Burkina Faso.

The project has received the firm support of the Ministry of Environment in Burkina Faso, and grant funding from the African Development Bank and World Bank to conduct the preparation activities, and will ensure women's groups can produce the shea butter more efficiently and sustainably, and also achieve significantly better access-to-market (receiving 2x - 5x more profit per tonne). The project will use clean technology at each processing centre and drive reforestation / afforestation at the collection sites, generating certified carbon credits by decarbonising the process and REDD+.

1.2. Design

Serious Shea has been established to enable the sustainable sourcing, processing and export of shea butter, displacing traditional methods, which drive significant deforestation and greenhouse gas emissions, and offer no socio-economic improvement to the women's groups.

The foundation of the agribusiness is the implementation of clean and efficient processing centres, known as *Eco-Processing Centres*, where the training and technology is provided to the women's groups to collect the shea nuts sustainably, and process shea butter cleanly and efficiently.

The project will transform the shea sector in Burkina Faso and enable the production and export of high volume and high-quality sustainable shea butter, where the product is facing rapidly increasing demand from cosmetic and food (e.g. chocolate) markets. Importantly, local women's groups are core partners in Serious Shea, and will achieve significantly better access-to-market and 2x-5x higher income.

1.3. Preparation Activities

Serious Shea has secured grant support from the AFT Fund (Agricultural Fast-Track Fund), established by the AfDB (African Development Bank), which will fund key preparation activities for the agribusiness. Serious Shea therefore has grant funding support to complete preparatory planning and assessment, including business planning, forestry mapping, site feasibility assessments, and the technology designs. The key objective in completing this work is to assist Serious Shea in raising funds for implementation.

More specifically, the preparation work includes the following:

Component 1: A Validated and Bankable Business Plan

- Validate key financial assumptions, including capital costs, production volumes, operational costs, etc.
- Engage potential off-takers to estimate purchasing requirements, prices, etc. for financial model
- Develop and finalize financial model, including cashflow, P&L, balance sheet and potential optimal funding structure
- Finalize draft business plan, outlining core strategy, key activities, logistics, team, risks management, financial projections, investment requirements, etc.

Component 2: Site Feasibility and Mapping Assessments

- Identify preferred 50 rural processing sites and location of 10 regional processing centres based on assessment of the concentration of women's groups, shea production areas, REDD+ regions, existing transportation networks, processing volumes, social assessment of communities and women's groups surrounding each collecting site
- Complete optimal design for logistics of Serious Shea's supply chain, which includes the process of collecting the fruit/nuts, storing the fruit/nuts, legal agreements with suppliers, payment processes, processed butter logistics, and export logistics

Component 3: Tree Mapping and Forestry Assessments

- Identify and classify the best areas for collection and processing of shea fruits
- Characterize each collecting area based on habitat and potential harvest. This objective is to develop a baseline of the existing shea habitat and associated drivers that are influencing production (e.g. fire, climate, agricultural practices). The objective is to also identify maximum, minimum and most likely volumes of shea nuts that could be sourced from each of the 60 collection areas
- Develop shea management plan to be implemented at each collecting centre to ensure sustainable shea harvesting, inform any tree or habitat improvement. This includes ways to influence mentalities/taboos about shea trees, training on grafting/pruning/etc., collective action for best shea management practices (collection dates, fire control, livestock encroachment, etc.), maybe the setup of women's shea plots with access to land "ownership" through village-level conventions and endorsement from traditional village authorities, etc. This will draw from the vegetation baseline (Component 3) and social baseline (Component 2)
- Establish a Geographical Information System (GIS) as a management tool to track shea production, harvesting and impact of activities

Component 4: Site Technology Design and Development

- Outline potential technological options for collecting, storing, processing and transporting of shea butter on a large-scale across Burkina Faso
- Refine potential solutions with key stakeholders (including Serious Shea and the women's groups), rank/prioritize preferred solutions and agree preferred technical design
- Prepare detailed final designs, costings, and implementation plan for collection sites, storage facility, transport logistics and processing centres

This document refers exclusively to **Component 2 - Site Feasibility and Mapping to Support the Preparation of Serious Shea, a Shea Butter Processing Company, in Burkina Faso**, which is covered in more detail in the following sections.

Goals & Objectives of Serious Shea Site Feasibility Assessments

Component 2 of the AFT grant focuses on site feasibility assessments and mapping. The overarching goals are to:

- Identify preferred 50 rural processing sites and location of 10 regional processing centres based on assessment of the concentration of women's groups, shea production areas, REDD+ Regions, existing transportation networks, processing volumes, social assessment of communities and women's groups surrounding each collecting site
- Complete optimal design for logistics of Serious Shea's supply chain, which includes the process of collecting the fruit/nuts, storing the fruit/nuts, legal agreements with suppliers, payment processes, processed butter logistics, and export logistics
- In order to prepare for implementation, and support Serious Shea in raising funds for implementation, the scope of work also includes developing a decision-support tool. This should be a simple cloud-based tool, such as Google Drive or Ona (optimized for mobile and desktop), that enables Serious Shea to store and manage data on the women's groups (names, profiles, photos, contact details, supply history, etc.), integrate the GIS maps from Component 3, and track the nuts (traceability with supplier ID and GPS coordinates from collection sites, etc.), payments to the women's groups (payment details, payments made, payments due, etc.), and butter consignments (butter exported, offtaker details, transport logistics, etc.)

Scope of Services, Tasks, and Expected Deliverables

1.1. Profiling and Mapping All the Potential Collection Sites

1.1.1. Activities, Components and Tasks

- Develop decision-support tool with GIS functionality including collecting and managing information on infrastructure, collection sites and social baselines
- Validate mapping of existing infrastructure from Sensonomic under Component 3. This should include primary, secondary roads (including those that are only operational in dry seasons). It should also include location of water bodies, power infrastructure, and settlements
- Identify the areas with the highest concentration of Women Associations working in the shea value chain
- Prepare profiles of potential 50 collection sites based on secondary data and existing knowledge. This should include details on adjacent women's groups (location of members, number of members, existing volumes collected, existing processing infrastructure, local use of nuts, route to market)
- Prepare social baseline for communities within 5km of each of the 50 collection site (demographics, livelihoods and income, education, health status, importance of shea, seasonality, membership of specific women's groups). This will be primarily derived from existing government data and information collected from other Serious Shea activities
- Identify candidate shortlist of 50 rural processing sites and 10 regional processing sites for more detailed assessment based on a) access and logistics, b) existence of women's groups prepared to work through Serious Shea, c) Adequate volume of nuts produced, d) alignment with sites selected through Component 3

1.1.2. Proposed Method of Execution

- Organize a kick-off meeting with the Serious Shea management team and Ministry of Environment in Ouagadougou and coordinate visits to proposed sites for the processing centres
- Engage Ministry of Environment (MoE) to understand the agroforestry efforts in Burkina Faso to date and collaborate fully on the site feasibility assessment. The MoE is working on shea tree regeneration and planting, and has conducted multiple studies, so will be able to share agronomic, yield, and production cycle data

- Organize a weekly update with a representative of the Serious Shea management Team
- The profiling and mapping information should be presented in both tabular form and organised to integrate into the project GIS.

1.1.3. Expected Deliverables

- Brief report identifying potential 50 priority rural processing sites and 10 locations for processing facilities

1.1.4. Capacity Building

- NA

1.2. Social Assessment

1.2.1. Activities, Components and Tasks

- In each of the 50 shortlisted sites, conduct a rapid characterization of the main demographic, agricultural, settlement, tenure, socio-economic patterns and drivers of land use and development in the village/collecting zone. This will also consider other expectations/challenges of households such as cashflow, education, healthcare. This can use participatory and semi-structured methods
- Conduct group interviews using semi-structured/participatory methods with women's groups adjacent to each shortlisted collection site. This will assess:
 - Maximum, minimum and preferred volumes to process
 - Impact of processing on domestic consumption of shea
 - Expected prices (and historical prices received)
 - Existing/preferred collection/processing arrangements (including current volume of firewood used).
 - Preferred payment mechanisms
 - Existing and preferred organization of women's groups
 - Key risks/opportunities for Serious Shea to consider and measures to mitigate/enhance
- Identify transferable lessons to be extended from 60 short-listed sites to further collection sites

1.2.2. Proposed Method of Execution

- Engage Ministry of Environment (MoE) and others in Burkina Faso to date and collaborate fully on the site feasibility assessment. For example, the MoE is working on shea tree regeneration and planting, and has conducted multiple studies, so will be able to share agronomic, yield, and production cycle data
- This includes organize a kick-off meeting with the Serious Shea management team and Ministry of Environment in Ouagadougou and coordinate visits to proposed sites for the processing centres
- Organize a weekly update with a representative of the Serious Shea management
- This task needs to align with the assessment in Component 3 which will also be conducting a participatory appraisal with women's groups and other interviews. This includes aligning the timing and integrating survey instrument
- The selection of the 50 sites for detailed assessment should be consistent with the assessment in Component 3

1.2.3. Expected Deliverables

- Section of the Operational Plan to identify barriers and opportunities for Serious Shea's planned development
- Profiles of potential collection sites and associated communities, and women's groups based on secondary data (including existing Serious Shea data) and maps and documentation of infrastructure organized as layers within a GIS with associated metadata.
- The assessment will produce a detailed social baseline for each short-listed collection site to support project development, operations and ongoing monitoring/evaluation

1.2.4. Capacity Building

- The assessment methods used for this assessment can be extended to deploy a participatory monitoring and evaluation methodology once Serious Shea has developed the processing centres and associated collection sites

1.3. Develop Operational plan

1.3.1. Activities, Components and Tasks

- Prepare development plan based on results of social and logistics assessment. This includes approach to stakeholder engagement, site development etc.
- In order to secure funding for implementation, Serious Shea will require an operations plan for the collection sites, including an optimal approach for key logistical aspects such as:
 - *Process of collecting the fruit/nuts*
 - *Storing the fruit/nuts*
 - *Legal agreements with suppliers*
 - *Payment processes*
 - *Processed butter logistics*
 - *Export logistics*
 - *Training and other capacity building requirements*
 - *Monitoring and evaluation plan*
- The strengths and weaknesses of alternative approaches to each of the above should be evaluated
- Develop alternative (back-up) supply chain options to mitigate the supply risk
- Develop an approach to track every bag of kernels put into the market with a unique identifier linked to a producer for monitoring and traceability. This will need to co-ordinate with activities in Component 4 of the AFT grant

1.3.2. Proposed Method of Execution

- Organize a kick-off meeting with the Serious Shea management team in Ouagadougou
- Organize a weekly update with a representative of the Serious Shea management team
-
- This task needs to include engagement with key stakeholders and will need to interface with other AFT project components to ensure it is pragmatic
- The plan should be integrated into the GIS such that it can be used as an ongoing tool by Serious Shea management

1.3.3. Expected Deliverables

- Development and operations plan to be used in each of the shortlisted collection sites. This includes detailed guidelines for procurement from women's groups, key procedures for engagement with women's groups, communities and other stakeholders, key risks and associated mitigation measures, potential organization of collecting centres and processing operations

- The plans are supported by a simple, piloted decision support tool to support the ongoing management of Serious Shea's logistics. This would be cloud-based software (optimized for mobile and desktop) that enables Serious Shea to store and manage data on the women's groups (names, profiles, photos, contact details, supply history, etc.), integrate the GIS maps from Component 3, and track the nuts (barcodes, supplier ID, etc.), payments to the women's groups (payment details, payments made, payments due, etc.), and butter consignments (butter exported, offtaker details, transport logistics, etc.). This deliverable will assist in ensuring traceability

1.3.4. Capacity Building

This task will play a critical role in building the operational and development capacity of Serious Shea and women's groups

Team Composition and Qualification Requirements for the Key Experts

The team needs to consist of:

- Individuals familiar with, and experienced at, working with the associated women's groups (>5 years' experience working with women's groups in West Africa)
- Organizations with a track record of social assessment including the use of semi-structured/ participatory methods (>5 years' experience in data collection and analysis in West Africa). The organization needs to be familiar at processing and organization the data such that it can support future Serious Shea decision making
- Individuals, or entity, with experience in developing decision-support software, integrated GIS maps, and associated databases (>5 years' experience in software design and development)
- Logistics specialists with a track record in optimizing collection and distribution (>5 years' experience in food logistics management in rural West Africa)

APPENDIX B – KEY EXPERTS

*The signed CVs of the Key Experts have been appended to the end of contract

APPENDIX C – BREAKDOWN OF CONTRACT PRICE

We hereby agree that we have agreed to pay to the Experts listed, who will be involved in performing the Services. The reimbursable expenses are also included below:

Form FIN-3 Breakdown of Remuneration

A. Remuneration						
No.	Name	Position (as in TECH-6)	Person-month Remuneration Rate		Time Input in Person/Month (from TECH-6)	USD
	Key Experts					
K-1	Jessica Antista	Team Lead	[Home]	\$ 19,499.37	1.3636	USD 26,590.05
			[Field]	\$ 19,499.37	0.6364	USD 12,408.69
K-2	Theophile Bama	Local Shea Advisor	[Home]	\$ 9,749.69	1.8182	USD 17,726.70
			[Field]	\$ 9,749.69	0.1818	USD 1,772.67
	Non-Key Experts					
N-1	TBD	Enumerators (12)	[Home]	\$ 3,656.13	0.0000	USD -
			[Field]	\$ 3,656.13	8.1818	USD 29,913.81
N-2	William Kwende	Processing Expert	[Home]	\$ 38,998.74	0.1364	USD 5,318.01
			[Field]	\$ 38,998.74	0.0000	USD -
		Shea Expert	[Home]	\$ 19,499.37	0.2273	USD 4,431.68
			[Field]	\$ 19,499.37	0.0000	USD -
N-3	Felicite Yameogo	Database Consultant	[Home]	\$ 9,266.98	0.6818	USD 6,318.39
			[Field]	\$ 9,266.98	0.0000	USD -
			Total Costs			USD 104,480.00

Form FIN-4 Breakdown of Reimbursable Expenses

B. Reimbursable Expenses					
N°	Type of Reimbursable Expenses	Unit	Unit Cost	Quantity	USD
N-1	Security consultant	day	\$ 500.00	15.00	USD 7,500.00
N-2	International airfare	round-trip flight	\$ 1,000.00	3.00	USD 3,000.00
N-3	International lodging	day	\$ 168.00	15.00	USD 2,520.00
N-4	International M&IE	day	\$ 138.00	15.00	USD 2,070.00
N-5	Local lodging	day	\$ 72.00	15.00	USD 1,080.00
N-6	Car for hire for Team Lead while in-country	day	\$ 130.00	15.00	USD 1,950.00
N-7	Local Shea Advisor gas stipend	day	\$ 50.00	20.00	USD 1,000.00
N-8	Tablets/smartphones for data collection	unit	\$ 250.00	12.00	USD 3,000.00
N-9	Enumerator gas stipend	unit	\$ 50.00	12.00	USD 600.00
N-10	Data collection system	unit	\$ 750.00	1.00	USD 750.00
N-11	Decision-support software	month	\$ 100.00	3.00	USD 300.00
N-12	Workshops/meetings	meeting	\$ 350.00	5.00	USD 1,750.00
Total Costs					USD 25,520.00

The total Contract Cost is **US\$130,000**.

Signature: 

Name and title: Jon White, Director of Serious Shea SARL

Date: 23/12/2018

FORM TECH-6**(CONTINUED)****CURRICULUM VITAE (CV)**

Position Title and No.	<i>K-1 Team Leader</i>
Name of Expert:	<i>Jessica Antista</i>
Date of Birth:	<i>10/25/1984</i>
Country of Citizenship/Residence	American Citizen, Côte d'Ivoire Resident

Education:

The American University, Washington DC. Attended September, 2003- May, 2007. Bachelor of Arts in International Studies, Bachelor of Science in Business Administration

Employment record relevant to the assignment:

Period	Employing org, title/ position, reference contact	Country	Summary of activities performed relevant to the Assignment
Jan 2015-present	Muse Group, Founder & Art Director For References: Tel: +22502508608, e-mail marhiav@gmail.com , Ms. Mariam Coulibaly, Workshop Manager	Côte d'Ivoire	1. Established Muse Group (non-profit) and its Callia ethical jewelry brand to generate revenues for low-income women in Côte d'Ivoire. 2. Established training programs for rural women to supply organic beads to Callia, and urban women to transform those beads into jewelry for export. 3. Built jewelry value chain sourcing from 160 women collectors and artisans. 4. Trained and coached 20 urban artisans. 5. Achieved sales of \$180k to 40 retail and wholesale clients across 7 countries, including the Metropolitan Museum of Art in New York.
May-Jul 2018	MarketShare Associates, Lead Researcher (Consultant), Tel: +44 7928 118 781, email: richard@marketshareassociates.com , Richard Horne, Managing Consultant	Côte d'Ivoire	1. Identified and interviewed key private sector stakeholders for an IFC-funded study of gender gaps the Ivoirian labor market, including entrepreneurship and the agribusiness and extractive industry sectors. 2. Developed sector-specific recommendations for private sector engagement to close gender gaps, to inform the design of an IFC private sector focused multi-sectoral gender program.

Aug-Nov 2017	TechnoServe, Interim Chief of Party, BeniBiz Program, Tel: +229 6767 3748, email: jobarowski@tns.org , James Obarowski, Benin Country Director	Benin	1. Mobilized the BeniBiz entrepreneurship project serving food & ag youth entrepreneurs and SMEs. 2. Designed and executed a mapping of the entrepreneurship sector in Benin and subsequent refinement of the project approach, which served to secure donor funding past the mobilization phase of the project.
Apr-Sept 2015	TechnoServe, Cocoa Practice Manager, Tel: +225 76 34 43 74, kkahlmann@tns.org , Katarina Kahlmann, West Africa Director	Côte d'Ivoire	1. Managed development and execution of TechnoServe's strategic vision, goals and objectives for cocoa value chain development in Côte d'Ivoire. 2. Engaged private and public partners and donors, designed demand-driven project proposals and negotiated new funding agreements to advance TechnoServe's strategic vision for the sector. 3. Designed and sold a 2-year, \$4M project for a leading chocolate maker to build cocoa cooperative capacity in farmer service provision.
Nov 2012-Mar 2015	TechnoServe, Deputy Regional Program Manager, Cocoa Livelihoods Program (CLP) and African Cocoa Initiative (ACI) Katarina Kahlmann	Côte d'Ivoire, Ghana, Nigeria	1. Managed partnerships, operations and budget (\$5.3M combined) for TechnoServe's work on CLP and ACI. 2. Managed multi-cultural, multi-lingual field staff of 13 across 3 countries. 3. Built private sector partnerships to facilitate ~\$6.5M in agro input financing for ~20k cocoa farmers. 4. Designed and executed innovative multi-party risk sharing mechanisms with 4 microfinance institutions, 1 commercial bank, 11 exporters and 10 input suppliers; driving farmer repayment of 95-100%. 5. Managed start-up of new Nigeria credit scheme, including model design and partner engagement. 6. Designed comprehensive M&E system to measure farmer yield impact and private partner ROI; developed and rolled out comprehensive data collection tools and database across program countries.
Jan 2009-Feb 2010	US State Department, Fulbright Scholar,	Cameroon	Managed field research team of 4 to design questionnaire, survey 150 women entrepreneurs and execute focus group discussions exploring the impact of gender awareness on business development.
Apr-Oct 2012	TechnoServe, Program Manager – Field Operations, West & Southern Africa, Katarina Kahlmann	10 Countries in West & Southern Africa	Managed internal and donor reporting for a \$77M portfolio of regional and country programs, including the design and execution of questionnaire-based impact studies.

Jun 2011-Mar 2012	TechnoServe, Associate Program Manager, West & Southern Africa Katarina Kahlmann		Conducted market analysis and designed sector development strategy for Zimbabwe peanut industry.
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Language Skills (indicate only languages in which you can work): English (native), French (fluent)

Adequacy for the Assignment:

Detailed Tasks Assigned on Consultant's Team of Experts:	Reference to Prior Work/Assignments that Best Illustrates Capability to Handle the Assigned Tasks
Identify 60 shea collection sites and 10 processing sites. Design the logistics and operations plan for Serious Shea's supply chain.	• Researched, designed and executed the supply chain for Muse Group/Callia's organic jewelry material and packaging, leveraging public and private partnerships to build a robust supply chain paying 50-120% price premiums to 160 women suppliers in Côte d'Ivoire. • Designed and executed multi-country input credit scheme reaching 20,000 cocoa farmers in Côte d'Ivoire, Ghana and Nigeria under the CLP and ACI programs. • Designed and executed the logistics and operations plans for above mentioned input credit scheme. Managed the flow of financing/inputs/training/information across financial institutions, input suppliers, cocoa off-takers, cocoa farmer organizations and TechnoServe field staff in 3 countries. • Researched and designed TechnoServe gender equity strategy for the Haiti Hope mango value chain project. • Conducted TechnoServe Zimbabwe peanut sector market study and designed sector development strategy.
Design and conduct a social assessment of the women's groups and communities surrounding the selected collection sites. Manage team of Technical Experts and Enumerators to ensure timely delivery of quality reports, in respect of defined calendar of deliverables	• As a Fulbright scholar, designed and managed a 1-year field study of the impact of gender consciousness on business growth of women micro entrepreneurs in Cameroon. • Designed and executed questionnaire- and focus group-based impact surveys and/or baseline studies for the following projects: ◦ Muse Group/Callia, Côte d'Ivoire ◦ BeniBiz, Benin ◦ CLP/ACI, Côte d'Ivoire, Ghana, Nigeria ◦ TechnoServe Regional Soy Project, Zambia, Mozambique • Designed and managed routine Monitoring & Evaluation systems and tools for the following projects: ◦ BeniBiz, Benin ◦ CLP/ACI, Côte d'Ivoire, Ghana, Nigeria
Develop recommendations for the design and execution of a GIS-based Decision Support Tool	• Designed and managed complex multi-country database of CLP/ACI cocoa farmer borrowers, including data on cocoa production, loan disbursement and repayment, and input distribution and application.

	Leveraged various software platforms to design and execute sales, marketing, accounting and inventory management systems for Muse Group/Callia.
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Expert's contact information: (Jessica.Antista@gmail.com, +225 49 85 28 86)

Certification:

I, the undersigned, certify that to the best of my knowledge and belief, this CV correctly describes myself, my qualifications, and my experience, and I am available to undertake the assignment in case of an award. I understand that any misstatement or misrepresentation described herein may lead to my disqualification or dismissal by the Client, and/or sanctions by the Bank.

Jessica Antista

7/11/2018

Name of Expert

Signature

Date

Katarina Kahlmann

7/11/2018

Name of authorized

Signature

Date

Representative of the Consultant
(the same who signs the Proposal)

(CONTINUED)

CURRICULUM VITAE (CV)

Position Title and No.	<i>Local Shea Advisor</i>
Name of Expert:	<i>Theophile Bama</i>
Date of Birth:	<i>7/October/1970</i>
Country of Citizenship/Residence	Burkina Faso

Education:

PGSM (Paris School of Management), France, 2/15/2014, IE-MBA

SvenskSkogsCertifiering AB (SSC) SSC-Forestry, Sweden, 12/15/2012, International Advanced Certificate

International Centre for Professional Training, EDUCATEL, ROUEN-CEDEX, France, Certificate, 10/23/2000

Employment record relevant to the assignment:

Period	Employing organization and your title/position. Contact infor for references	Country	Summary of activities performed relevant to the Assignment
May 2018 – October 2018	Winrock International, Consultant on Product Certification Bryn Davis Bryn.Davies@winrock.org	Ghana	To attain organic certification for moringa seeds in Zukpiri with Ecocert and to support a successful Ecocert annual (2018 season) inspection for shea in Zukpiri.
July 2018 – September 2018	Mother's Shea Ltd, Consultant on Product Certification shane.bohbrink@naasakle.com ; Shane Bohbrink	Ghana	Support to the Mother's Shea organic and fair trade certifications project
August 2018 – January 2018	Market development in Northern Ghana (MADE), Consultant on Product quality cbakaweri@ghana-made.org & bryan@integrated.com.co ; Chirs Bakaweri	Ghana	Local consultant for the management coaching and groundnut aflatoxin control
August 2017 – November 2017	TechnoServe & Sufap Company Ltd, Lead consultant on product certification aabdulai@tns.org ; Abdul Abdulai	Ghana	Support to the Zukperi Community Resource Management Area (CREMA)'s

	sufap2015@gmail.com; Sufap Company Ltd		Organic Certification, Upper West, Northern Ghana.
July 2017	Business Growth Accelerator Consultant / Product quality and certification peter.haycocks@ghana-bga.com ; Peter Haycocks, BGA	Ghana	Speaker to Agribusiness owners of the MADE value chains with the topic "Quality standards & Certification"
July 2017	Business Growth Accelerator, Consultant on Risk Management lisa.mynheer@ghana-bga.com ; Lisa Mynheer, BGA	Ghana	Speaker to Agribusiness owners of the MADE value chains with the topic "Risk Management"
February 2017	Mother's Shea Ltd Consultant on product certification shane.bohbrink@naasakle.com ; Shane Bohbrink	Ghana	Analyze the visibility of shea, moringa, tamarind, dawadawa, and prospective economic indigenous species that are prevalent in the CREMA based on availability and marketability of these NRPs–TechnoServe
January 2017	TechnoServe, Consultant on Value chains analysis aabdulai@tns.org ; Abdul Abdulai RWallace@tns.org ; Ruth Wallace	Tamale, Ghana	Analyze the visibility of shea, moringa, tamarind, dawadawa, and prospective economic indigenous species that are prevalent in the CREMA based on availability and marketability of these NRPs–TechnoServe
August 2016	Farmers' cooperatives development project (FCDP), Assistant consultant on Project evaluation yissaka@outlokk.com ; Balma Issaka Yakubu, Lecturer UDS Nyankpala, Excel development consultancy	Tamale, Ghana	Evaluation end of Farmers' cooperatives development project (FCDP) - Association of church development projects
June 2016	Consultant on Product certification sheanetworkghana@gmail.com ; Iddi Zakaria	Ghana	Speaker to the SNG (Shea Network Ghana), a network of over 80 members, with the topic "ENGAGING the POWER of PRODUCT CERTIFICATION for DEVELOPMENT: Importance & Access Issues for the Shea Sector" (Ref.Sufap Course 001-CERT2016)

January 2016 – February 2016	NRGP, Consultant on Product population study orgiisghana@yahoo.com ; Organization for indigenous initiatives and sustainability Ghana (ORGIIS)	Paga, Ghana	Baobab population study in Northern Ghana – NRG project on facilitating the women's communality window in Northern Ghana
June 2014 – October 2015	StarShea Ltd, Operation Manager www.starshea.com ; StarShea Ltd, Planet Finance	Ghana	Organic, fair-trade and conventional shea nuts and butter export
March 2015 – April 2015	Market development in Northern Ghana (MADE), Market development specialist chrisbakaweri@gmail.com ; Chirs Bakaweri	Ghana	Groundnut seeds value chain
July 2013 – May 2014	StarShea Ltd, Planet Finance, Consultant on Product certification www.starshea.com ; StarShea Ltd, Planet Finance	Ghana	Organic, fair-trade and conventional shea nuts and butter export
December 2013	Wageningen University, Consultant and Research facilitator jo.wijnands@wur.nl ; Dr. Jo H.M. Wijnands jolanda.vandenberg@wur.nl ; Dr. Van den Berg Jolanda	Ghana	Visits and meetings research institutions and other stakeholders in the Shea and Cashew sectors in Northern Ghana
July 2013	Assistant consultant on Carbon mission study Dr. Peter Lovett shea.expert@gmail.com	Ghana	ICCO Carbon emission measurement (Trees identification / data collection)
April 2013 – May 2013	Global Shea Alliance , Local Consultant www.globalshea.com ; Global Shea Alliance	Ghana	Price survey in the shea sector
December 2012 – February 2013	BRI and Green Action , Consultant on Product certification ssulehsn@gmail.com ; Sule Nylander Luc@gokaibae.com ; Luc Maes	Ghana	Kaibae (USA) Organic and fair trade development
May 2012 – December 2012	SNV/Netherlands Development Organization/BDS, Lead consultant on Product certification senyo.kpelly@gmail.com ; Senyo Kpelly	Tamale, Ghana	Support to the SEKAF-Ghana Shea Organic Project.
March 2011 – December 2011	SNV/Netherlands Development Organization, Lead consultant on Product certification chrisbakaweri@gmail.com ; Christopher Bakaweri, SNV-Ghana	Tamale, Ghana	Support to the NAASAKLE's Organic and Fair Trade Certification, Damango, and NECIDA/Chereponi, TEPIA/Yendi and SAMAKUSE/Salaga Ghana.

December 2010	AGRA, Team Mate and Value chain evaluation Prof. Saah ditto UDS –Nyankpala campus	Ghana	An assessment for AGRA program for Africa seed systems value chain evaluation
July 2010 – December 2010	SNV/Netherlands Development Organization Lead consultant on Supply chain development chrisbakaweri@gmail.com ; Christopher Bakaweri, SNV-Ghana	Tamale, Ghana	Support to the Yendi Diocese of the Catholic Church and NECIDA-Chereponi to supply Shea nuts to Loders Croklaan, Ghana
June 2010	NRGP (Northern Rural Growth Programme), Consultant on Product quality Ashley Good	Ghana	Training women on quality Shea nuts production in the Upper East Region, Ghana
March 2010 – May 2010	SNV/Netherlands Development Organization, Lead consultant on Supply chain evaluation chrisbakaweri@gmail.com ; Christopher Bakaweri, SNV-Ghana	Tamale, Ghana	Support to the Yendi Diocese of the Catholic Church to supply Shea nuts to Loders Croklaan, Ghana.
February 2010 – March 2010	TechnoserveBolga, Consultant on Product certification rwallace@tns.org ; Ruth Wallace	Ghana	Support to organic shea nuts certification
November 2009 – December 2009	Team mate Prof. Saah Ditto UDS –Nyankpala campus	Ghana	The World Vegetable Center (AVRDC) assessment of micro-irrigation technologies for Vegetable Production in the West Africa Sub-region (Ghana, Burkina Faso, Niger, Mali and Senegal)
July 2009	SNV/Netherlands Development Organization, Consultant and surveyor Eliot Master (FLO-Mali) chrisbakaweri@gmail.com ; Christopher Bakaweri, SNV-Ghana	Ghana	An assessment of Climate change impact on the axis North-South of Burkina Faso
October 2002 – April 2007	Institute for Environment and Agricultural Research/Department of Forest and Environmental Production, Research Technician (www.inera.bf)	Burkina Faso	Trees inventories, fire treatment and wood cutting
July 2005 – August 2005	Dijon Agronomic College of France, Supervisor	Burkina Faso	Two French Agricultural practical training in Burkina Faso. Proposed research topic “rehabilitation of degraded zone with three perennials grass species; <i>Andropogongayanus</i> ,

			<i>Andropogonascinodis and Diheteropogonamplectens</i>
November 2004	Project 7 ACP BK / 143- PARC W (ECOPAS), Consultant	Burkina Faso	Ligneous and herbaceous inventory on the 48 plots; Biomass evaluation of vegetable material.
October 2004	Project 7 ACP BK / 143- PARC W (ECOPAS), Consultant	Burkina Faso	Installation of 84100m2 experimentation site each in 3 zones; Subdivision of each site into 16 plots of 2500m2 each separated with fire belt; Ligneous and herbaceous inventory on the 48 plots; Biomass evaluation of vegetable material.
July 1995 – September 2002	Swedish University of Agricultural Sciences (SUAS) & Institut de Recherche en Biologie et Ecologie Tropicale (IRBET), Technician and computer operator sawadodo_ls@hotmail.com; Dr. Louis Sawadogo	Burkina Faso	Support to international research
May 1993 – June 1995	6 th commitment project "Operation ZANU", Communities Organizer	Burkina Faso	Support to local development

Membership in Professional Associations and Publications:

Language Skills (indicate only languages in which you can work):

French – fluent

English – working proficiency

Gourounsi (Lele) – fluent

Adequacy for the Assignment:

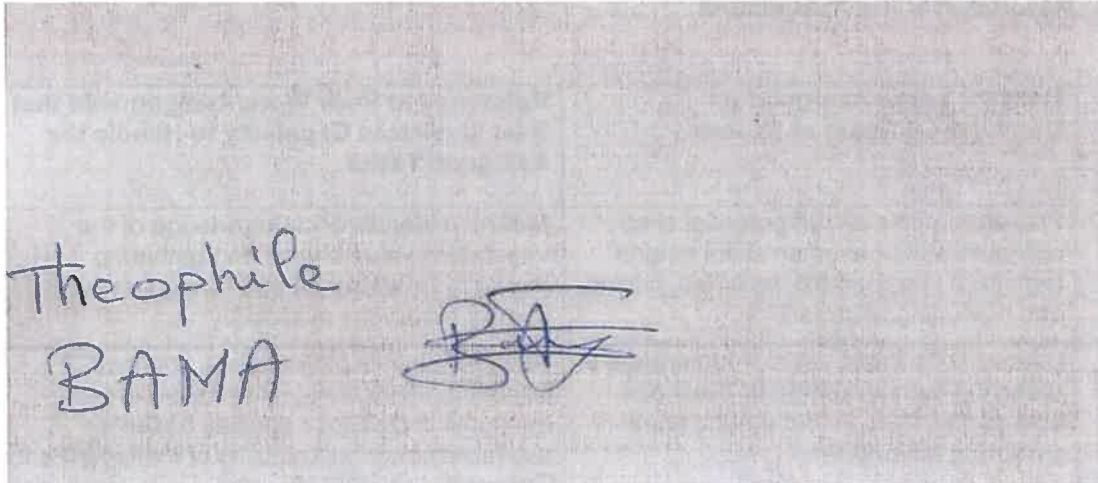
Detailed Tasks Assigned on Consultant's Team of Experts:	Reference to Prior Work/Assignments that Best Illustrates Capability to Handle the Assigned Tasks
Prepare profiles of 100 potential shea collection sites based on client criteria (eg active membership, volumes, pricing, and marketing information)	Skilled in identification knowledge of the vegetables value chains and gathering marketing intelligence and forest surveys to identify resources availability
Directly collect and assist enumerators in collecting demographic and livelihood data of members in and around shea producing communities	Analyzed the visibility of shea, moringa, tamarind, dawadawa, and prospective economic indigenous species based on availability and marketability of these NRPs for TechnoServe CREMA
Conduct women group interviews using participatory methods	Facilitated the women's communality window in Northern Ghana for NRGF 2014 Trained women in Upper East Region of Ghana on quality Shea nut production for NRGF 2010
Provide input to Team Leader on synthesized findings and analysis of collection site, processor site, and proposed supply chain operational plan including logistics, payment, model contract arrangement, training and capacity gaps, and monitoring and evaluation plan	Lead consultant on supply chain development and operations for SNV/Netherlands Development, 2010.

Expert's contact information: e-mail bamatheo@gmail.com; phone 00226 73332737

Certification:

I, the undersigned, certify that to the best of my knowledge and belief, this CV correctly describes myself, my qualifications, and my experience, and I am available to undertake the assignment in case of an award. I understand that any misstatement or misrepresentation described herein may lead to my disqualification or dismissal by the Client, and/or sanctions by the Bank.

November 7, 2018



Name of Expert

Signature

Date

Theophile Bama

7/11/2018

Katarina Kahlmann

A handwritten signature in blue ink that reads "Kat. Kahl".

Name

Signature

7/11/ 2018

Date

Representative of the Consultant

(the same who signs the Proposal)